

U.O.Note No.1184/SC.E/96-1, Genl.Admn. (SC.E) Dept., dt.22.04.1996: Cases of deviation from Vigilance Commission's advice to be circulated to Chief Minister, not Governor.

Subject Heading : Vigilance Commission - deviation, to be circulated to C.M.

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Ref : Govt.Memo.No.3148/SC.E/95-1, G.A.(SC.E) Dept., dt.19.12.95.

The attention of the Departments of Secretariat is invited to the instructions issued in the reference cited.

2. Based on the instructions contained in U.O.Note No.1145/55-2,dt.01.06.1955 of Home (Services.C) Department of ex-Andhra Government, U.O.Note No.1672/Ser.C/81-1, GA (Ser.C) Department, dt.19.11.1981 read with those in Government Memo.No.3148/SC.E/95-1, dt.19.12.1995, one of the Departments of Secretariat proposed to circulate a file in which the proposal of the Department is in deviation to the advice of the Vigilance Commissioner to the Governor.

3. The instructions contained in the two U.O.Notes referred to in para2 above (not Govt.Memo.), covers only cases in which it is proposed to differ from the advice of the A.P.Public Service Commission and are required to be circulated to the Governor, for information, as a matter of convention and not in accordance with any provision in the Business Rules.

4. It is hereby clarified that the instructions issued in the reference cited do not envisage circulation of the cases involving deviation from the advice of the Vigilance Commissioner through the Chief Minister to the Governor. The Business Rule 32(3) specifies classes of cases which the Chief Minister is required to circulate to the Governor. The cases wherein it is proposed to deviate from the advice of the Vigilance Commissioner are not covered in the subjects referred to in the said Business Rule. Such cases should, however, be circulated to the Chief Minister through the Chief Secretary and the Minister concerned as already reiterated in the Government Memo. cited.